

TAB 36



Board of Education Report

File #: Sup Res -004-24/25, Version: 2

Reappointment of Member to the Personnel Commission (Sup Res 004-24/25)

Resolved, That the Governing Board of the Los Angeles Unified School District reappoints Joseph L. Paller, Jr. as a member of the Personnel Commission of the Los Angeles Unified School District for a three-year term pursuant to California Education Code Section 45245.

INTEROFFICE CORRESPONDENCE
Los Angeles Unified School District
Personnel Commission

INFORMATIVE

DATE: October 22, 2024

TO: Members, Board of Education
Alberto M. Carvalho, Superintendent

FROM: David V. Greco, Personnel Director *DVG*
Personnel Commission

SUBJECT: REAPPOINTMENT OF JOSEPH PALLER AS PERSONNEL COMMISSIONER

As you are aware, the Personnel Commissioners are appointed to three-year overlapping terms; with each term expiring on December 1st in successive years. In accordance with Section 45249 of the California Education Code, one vacancy is filled by SEIU, the Classified Bargaining Union with the largest number of classified employees. The next appointment is made by the Board of Education. This position is currently held by Joseph Paller. The two appointees elect the third and final Personnel Commissioner.

Mr. Paller, whose current term will expire on December 1, 2024, has expressed an interest in continuing his assignment as the Board's appointee to the Personnel Commission. Mr. Paller has served as a Commissioner since 2001. During his tenure he has been especially involved in ensuring that the administration's perspective is heard, and that the voices of employees are fairly heard when considering personnel matters for the LAUSD. Over the years, Mr. Paller has demonstrated the highest level of integrity on matters coming before the Personnel Commission. His attention to detail, coupled with his fair-minded approach to managing complex and sensitive matters has served the District well. To be eligible for appointment or reappointment to the commission, a candidate must be:

- (1) a registered voter and resident within the territorial jurisdiction of the school district.
- (2) a known adherent to the principles of the merit system.

Mr. Paller has met both of these requirements. A copy of Mr. Paller's biography is attached for your review.

Members, Board of Education
October 22, 2024
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Thank you for your attention to this important request for reappointment. Unless there is an objection, a motion will be placed on the October 22, 2024, *Order of Business* for public announcement, as required for the governing board's appointee. Subsequently, the motion will be placed on the November 19, 2024, agenda for a vote.

I would be glad to meet with you to discuss this request for reappointment, or should you have any questions, please do not hesitate to contact me at david.greco@lausd.net or (213) 241-1660.

Attachment

c: Devora Navera Reed
Pedro Salcido
Karla V. Estrada
Carolyn Spaht
Kristen K. Murphy
Jaime Torrens
Amanda Wherritt
Patricia Chambers
Sasha Lopez
Carol Delgado
Michael McLean
Personnel Commissioners



Joseph L. Paller Jr.
Principal
Gilbert & Sackman, a Law Corporation
Los Angeles, California
 213 900-4690
 joseph.paller@lausd.net

Joseph Paller has served as a member of the Personnel Commission of the Los Angeles Unified School District since 2001.

In his legal practice, Mr. Paller is widely recognized by his peers as a leading expert and practitioner in the fields of employee benefits and labor law. He is one of a handful of attorneys in North America who has been inducted as a Fellow of the *American College of Employee Benefits Counsel* (“ACEBC”), in recognition of his achievements as an ERISA practitioner, and as a Fellow of the *College of Labor and Employment Lawyers*, in recognition of his contributions to employment law. He was elected by the ACEBC to its Board of Governors in 2020, and continues to serve as a Governor of that prestigious organization.

Mr. Paller presently serves as a Chapter Co-Editor for the current edition of the leading legal treatise on ERISA law, *Employee Benefits Law*, published jointly by the *American Bar Association* and *Bloomberg BNA*. In addition, Mr. Paller is a Co-Chair of the *ABA Subcommittee on Jointly Administered Plans of the Labor & Employment Law Section*, which focuses on multiemployer and single employer Taft-Hartley trust funds. His articles on employee benefits and employment issues have appeared in many books and legal journals, listed below.

In 2021, Mr. Paller served as a Chapter Co-Editor of another leading legal treatise, *Labor Union Law & Regulation*, also published jointly by the *American Bar Association* and *Bloomberg BNA*.

Experience. Mr. Paller serves as neutral or co-counsel to Boards of Trustees of over 25 Taft-Hartley trust funds, including pension, profitsharing, 401(k), and money purchase plans, health

plans, joint apprenticeship and training funds, and labor management cooperation committees. Mr. Paller has designed and qualified multiemployer plans in Arizona, California, Minnesota, Nevada, and Texas. His plan designs have served as models for plans in Massachusetts, Missouri, and New Mexico.

Mr. Paller has also litigated numerous employee benefits and labor cases in federal and state courts, before state and federal administrative agencies, and in arbitration.

Honors and Achievements. In addition to his elections to the prestigious American College of Employee Benefits Counsel and the College of Labor and Employment Lawyers, Mr. Paller was honored in *U.S. News & World Report* as the “Lawyer of the Year” in 2020 and 2017 in the greater Los Angeles metropolitan area in the field of “Labor Law-Union,” as chosen by *Best Lawyers in America*. Only a single lawyer in Los Angeles and surrounding counties is named “Lawyer of the Year” in a field of practice.

For 20 consecutive years, Mr. Paller has been selected to *Super Lawyers*® by Thomson Reuters. Out of 68,000 attorneys in Southern California, Mr. Paller is one of 341 (or 0.05%) who have been honored as a *Super Lawyer* in every year of the award’s existence.

Each year from 2018 through 2024, Mr. Paller has been recognized in *Lawdragon’s Leading Civil Rights & Plaintiff Employment Lawyers*, an honor reserved for the top 500 plaintiff-side employment lawyers in the United States.

Since 1998, Mr. Paller has been rated AV-Preeminent®, the highest possible rating in both legal ability and ethical standards, as determined through a rigorous peer rating process by *Martindale Hubbell*, the world’s most trusted legal resource. “An AV® certification mark is a significant rating accomplishment - a testament to the fact that a lawyer’s peers rank him or her at the highest level of professional excellence.”

Professional Activities and Publications. Mr. Paller has long been active in professional organizations. Mr. Paller’s articles have been featured in the *Labor Lawyer* published by the *American Bar Association*, the *Benefits Digest* published by the *International Foundation of Employee Benefit Plans*, the *California Labor & Employment Law Review* published by the *California Lawyers Association*, the *Proceedings of the National Academy of Arbitrators* published by *Bloomberg BNA*, and various white papers published by the *AFL CIO Lawyers Coordinating Committee* (now renamed the Union Lawyers Alliance).

Mr. Paller has spoken on multiple occasions for the *International Foundation of Employee Benefit Plans*, most recently at the *2024 Construction Industry Benefits Conference* in Las Vegas, Nevada. Mr. Paller also lectures frequently for the *AFL-CIO Union Lawyers Alliance*, most recently at the *2022 ERISA Advanced Seminar* in Washington, D.C. That program, offered biennially, provides high-level training for a select group of experienced ERISA lawyers on current issues facing multiemployer plans.

Since 2000, Mr. Paller has spoken at more than 80 other events, including programs sponsored by the *American Bar Association*, the *National Labor Relations Board*, the *State Bar of California*, the *AFL-CIO Union Lawyers Alliance*, the *UFCW Attorneys Conference*, the *Federal Mediation & Conciliation Service*, the *Labor & Employment Relations Association* and its subchapters, and the *California School Personnel Commissioners Association*.

Mr. Paller served as a member of the Board of Directors of the *AFL-CIO Lawyers Coordinating Committee* from 2005 through 2008.

Mr. Paller was Chair of the *Labor and Employment Law Section of the Los Angeles County Bar Association* in 1993 to 1994, and served as Chair of the Section's annual Labor and Employment Law Symposium in 1990. He has been a member of the Executive Committee of the Section since 1987.

Mr. Paller was also President of the *Southern California Labor and Employment Relations Association* (then known as the Orange County Industrial Relations Research Association) in 1993 and 1994. Since 1989, he has been a member of the Planning Committee for the Association's annual Labor and Employment Law Conference.

For many years, Mr. Paller was a regular contributor to the "Shoptalk" column in the *Los Angeles Times*, providing answers to labor and employment questions. He was the only member of the panel of responding lawyers who represented trust funds or unions.

Educational Activities. In addition to his work at Gilbert & Sackman, Mr. Paller is deeply involved in school and college governance and instruction. Mr. Paller is an Instructor at the *Gould School of Law at the University of Southern California*, teaching the law school's first class on labor arbitration. For more than 20 years, Mr. Paller has taught college courses for the Labor Center at Los Angeles Trade-Technical College, including classes on legal rights for California workers, basic and advanced labor law, and employee benefits.

Mr. Paller was honored as the "2017 Distinguished Personnel Commissioner" by the California School Personnel Commissioners Association in a ceremony held in San Diego.

Arbitration Service. Since 1995, Mr. Paller has served as an employment dispute and commercial dispute arbitrator for the *American Arbitration Association*.

Bar Admissions and Education. Mr. Paller has been admitted to practice law in California, Nevada, New York and Pennsylvania. He is a graduate of the UCLA School of Law. He received his Bachelor of Arts degree from the University of California, Santa Barbara.

Selected Recent Presentations/Papers (since 2010)

“It’s in the Cards: Organizing After the NLRB’s *Cemex* Ruling,” 76th Annual Meeting, Labor and Employment Relations Association, New York, New York (2024)

“Marijuana in the Workplace,” Construction Industry Benefits Conference,” International Foundation of Employee Benefit Plans, Las Vegas, Nevada (2024)

“Discrimination in and Interference with Employee Benefits,” 2023 ERISA Basics National Institute, ABA Joint Committee on Employee Benefits (2023) (online seminar)

“Remedies,” 2023 ERISA Basics National Institute, ABA Joint Committee on Employee Benefits (2023) (online seminar)

“Can I Still do it from Home? Key Questions and Hot Topics Labor and Management Continue to Face Since the Pandemic,” 75th Annual Meeting, Labor and Employment Relations Association, Detroit, Michigan (2024)

“Running Your Training Fund as a Business,” 68th Annual Employee Benefits Conference, International Foundation of Employee Benefit Plans, Las Vegas, Nevada (2022) (co-authored with David Evangelista)

“Investment Issues,” AFL-CIO Union Lawyers Alliance 2022 ERISA Advanced Seminar, Washington, D.C. (September 2022) (co-authored with Nicole Grinstein and Brian Hicks)

“Overview of COVID-19 Workplace Laws and Regulations,” Southern California Labor & Employment Relations Association (online seminar) (2021)

“Selected Fiduciary Duty Issues for Collectively-Bargained ERISA Plans,” AFL-CIO Lawyers Advanced ERISA Seminar, Washington, D.C. (2020)

“ERISA Fiduciary Duty Basics,” AFL-CIO Lawyers ERISA Basics Seminar, Washington, D.C. (2019) (co-authored with Peter S. Dickinson)

“Ethics Basics for Union-Side Multiemployer Plan Attorneys,” AFL-CIO Lawyers ERISA Basics Seminar, Washington, D.C. (2019)

“Ethics: Confidentiality Issues in Labor Arbitration, Litigation and Bargaining,” 2019 UFCW Attorneys Conference, San Antonio, Texas (2019)

“Recent Developments at the NLRB,” Orange County Labor & Employment Relations Association, Anaheim, California (2019)

“What is the Right Number? Lifetime Benefits from Defined Contribution Plans,” 64th Annual Employee Benefits Conference, International Foundation of Employee Benefit Plans, New Orleans, Louisiana (October 2018)

“Representing Multiple Parties and Interests,” AFL-CIO Union Lawyers Conference, Atlanta, Georgia (May 2018)

“What Commissioners Need to Know,” California School Personnel Commissioners Annual Meeting, San Diego, California (2018)

“Fiduciary Basics,” AFL CIO Lawyers ERISA Basics Seminar, Washington, D.C. (2017) (co-authored with Ellen Silver)

“Ethics Basics for Union-Side Multiemployer Plan Attorneys,” AFL-CIO Lawyers ERISA Basics Seminar, Washington, D.C. (2017)

“The NLRB in the Trump Administration,” Orange County Labor & Employment Relations Association, Anaheim, California (2017)

“Multiemployer Potpourri: Construction Industry Reciprocity Litigation,” Employee Benefits Committee of the Labor & Employment Law Section, American Bar Association, Austin, Texas (2017)

“The NLRB in the Trump Administration,” Orange County Labor & Employment Relations Association, Anaheim, California (2017)

“Revenue Sharing Issues for Defined Contribution Plans,” AFL-CIO Advanced ERISA Seminar, Washington D.C. (2016)

“Legal, Accounting, and Legislative Update for Trustees and Coordinators,” Western Conference on Sheet Metal Apprenticeship and Training, San Diego, California (2016)

“Labor Law for Employment Lawyers,” State Bar of California Labor & Employment Law Section Webinar (with Erich Shiners) (2015)

“Insight on Fees (DC and DB Plans),” 61st Annual Employee Benefits Conference, International Foundation of Employee Benefit Plans, Honolulu, Hawaii (2015)

“New Developments in California Labor and Employment Law,” 33rd Annual Labor Law Conference, sponsored by National Labor Relations Board Regions 21 and 31, the Federal Mediation & Conciliation Service, and the Orange County Labor and Employment Relations Association, Anaheim, California (2015)

“Multiemployer Potpourri: The Multiemployer Pension Reform Act of 2014,” Employee Benefits Committee of the Labor & Employment Law Section, American Bar Association, San Diego, California (2015)

“Hot Topics in the Workplace: The Supreme Court Promotes Mandatory Employment Arbitration and Class Action Waivers,” 32nd Annual Labor Law Conference, sponsored by National Labor Relations Board Regions 21 and 31, the Federal Mediation & Conciliation Service, and the Orange County Labor and Employment Relations Association, Anaheim, California (2014)

“What’s Wrong with Labor Arbitrators?” Southern California Chapter of the National Academy of Arbitrators, Los Angeles, California (2014)

“Traditional Labor Law: Recent NLRB Decisions Affecting the Non-Union Workplace,” Labor & Employment Law Section Retreat, sponsored by Los Angeles County Bar Association, Ojai, California (2013)

“Facebook and Social Media: New Traps for Employers and Employees, New Opportunities for Unions,” 30th Annual Labor Law Conference, sponsored by National Labor Relations Board Regions 21 and 31, the Federal Mediation & Conciliation Service, and the Orange County Labor and Employment Relations Association, Anaheim, California (2012)

“Update on Employment Law,” and “Workshop: Human Resources Issues,” Trustees Institute for Jointly Managed Training and Education Funds, International Foundation of Employee Benefit Plans, Las Vegas, Nevada (2012)

“Social Media and the National Labor Relations Board: Something to Get All A Twitter About,” 32nd Annual Labor & Employment Law Symposium, sponsored by Los Angeles County Bar Association, Los Angeles, California (2012)

“Hot Issues at the NLRB: Cases on Social Media and Protected Activity, and the New Notice Posting Rules,” Orange County Labor and Employment Relations Association, Anaheim, California (2011)

“Are There Greater Fiduciary Responsibilities in Your Defined Contribution (DC) Plans?” 57th Annual Employee Benefits Conference, International Foundation of Employee Benefit Plans, New Orleans, Louisiana (2011)

“Fair Representation and the Attorney Client Relationship in Labor Arbitration: Dilemmas for Union Counsel,” 64th Annual Meeting, National Academy of Arbitrators, San Diego, California (2011)

“Collective/Class Actions and Collective Actions: Selected Ethical and Legal Issues,” 2011 AFL-CIO Union Lawyers Conference, San Diego, California (2011)

“Fee Disclosure in Defined Benefit and Defined Contribution Plans,” Investments Institute, International Foundation of Employee Benefit Plans, Las Vegas, Nevada (2011)

“The NLRB in the Obama Administration,” 2010 Western States Labor & Employment Law Conference, sponsored by National Labor Relations Board Regions 20, 21, 28, 31 and 32, the Federal Mediation & Conciliation Service, and six local Chapters of the Labor and Employment Relations Association, Las Vegas, California (2010)

“Returning to the Mainstream: The NLRB in the Obama Administration,” 28th Annual Labor Law Conference, sponsored by National Labor Relations Board Regions 21 and 31, the Federal Mediation & Conciliation Service, and the Orange County Labor and Employment Relations Association, Anaheim, California (2010)

Selected Print Publications

Chapter Co-Editor (Jointly Administered Plans) and Contributing Author, *Employee Benefits Law*, American Bar Association & Bloomberg BNA (2010-present)

Chapter Co-Editor (Union Security) and Contributing Author, *Labor Union Law and Regulation*, American Bar Association & Bloomberg BNA (2020-present)

Fair Representation and the Attorney Client Relationship in Labor Arbitration: Dilemmas for Union Counsel, Arbitration 2011: Varieties of the Arbitration Experience; Proceedings of the 64th Annual Meeting, National Academy of Arbitrators, Bureau of National Affairs (2012)

J. Paller & A. Barnes, *The Economics of Wage & Hour Litigation: Recovering Attorney's Fees and Costs, Wage & Hour Litigation Issues*, The Labor Law Exchange, Vol. 22 (AFL-CIO Lawyers Coordinating Committee, 2008)

Union Lawyers Are Not Liable for Malpractice or Breach of the DFR in Labor Arbitration or Contract Negotiations, LCC Bulletin, No. 183 (AFL-CIO Lawyers Coordinating Committee, July-August 2007)

“Gentlemen Do Not Read Each Other’s Mail:” A Lawyer’s Duties upon Receipt of Inadvertently-Disclosed Confidential Information, *The Labor Lawyer*, Vol. 21, No. 3 (American Bar Association, Winter/Spring 2006)

Fiduciary Investment Issues in Defined Contribution Plans, *Benefits & Compensation Digest* (web exclusive) (International Foundation of Employee Benefit Plans, August 2006)

NLRB Forbids Regions’ Ex Parte Communications with Supervisors in Organizations Represented by Counsel, *California Labor & Employment Law Quarterly* (2003)

Contributor, weekly “Shop Talk” column, *Los Angeles Times* (1997-2002)

Contributing Author, *Defense of Non-Traditional Labor Protest Activities*, AFL-CIO Lawyers Coordinating Committee (AFL-CIO 2001)

J. Paller & S. Kaplan, *The Protection of Employee Privacy*, *The Employee Termination Handbook* (Wiley Interscience, 1986)